

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Wurtzel	Team: Squad #06	CCRB Case #: 201701220	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 02/14/2017 7:25 PM	Location of Incident: 662 Blake Avenue	18 Mo. SOL 8/14/2018	Precinct: 75		
Date/Time CV Reported Tue, 02/14/2017 9:03 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Tue, 02/14/2017 9:03 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Marc Whirl	09207	937726	075 PCT
2. SGT Jeffrey Liu	5402	943491	075 PCT
3. POM Kevin Morgan	07698	949365	075 PCT
4. POM Mordecai Austrie	18677	954508	075 PCT
5. POM Teriq Grant	12175	954893	075 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM James Argila	15383	946752	075 PCT
2. POM Derick Russ	04555	949590	075 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Mordecai Austrie	Abuse: Police Officer Mordecai Austrie stopped the vehicle in which § 87(2)(b) was an occupant.	A . Exonerated
B . POM Mordecai Austrie	Abuse: Police Officer Mordecai Austrie stopped § 87(2)(b)	B . Exonerated
C . POM Mordecai Austrie	Abuse: Police Officer Mordecai Austrie frisked § 87(2)(b)	C . Exonerated
D . POM Mordecai Austrie	Abuse: Police Officer Mordecai Austrie searched § 87(2)(b)	D . Substantiated
E . SGT Jeffrey Liu	Abuse: Sergeant Jeffrey Liu authorized the search of the vehicle in which § 87(2)(b) was an occupant.	E . Substantiated
F . POM Teriq Grant	Discourtesy: Police Officer Teriq Grant spoke discourteously to § 87(2)(b)	F . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

§ 87(2)(g)

§ 87(2)(b)

filed this complaint with the CCRB via email on February 14, 2017.

On February 14, 2017, at 7:25 p.m., § 87(2)(b) was sitting in the driver's seat of his BMW convertible which was parked in front of 662 Blake Avenue in Brooklyn. § 87(2)(b) was having a conversation with § 87(2)(b) who was in the passenger seat. At this time, Police Officer Mordecai Austrie and Police Officer James Argila of the 75th Precinct pulled up behind § 87(2)(b) in an unmarked car with their lights on. Police Officer Austrie approached § 87(2)(b) vehicle on the driver's side and asked him for identification and registration (**Allegation A**).

§ 87(2)(b) initially argued with Police Officer Austrie but provided his identification and registration shortly after. Police Officer Austrie then asked § 87(2)(b) to exit the vehicle but he refused to do so until Police Officer Austrie spoke with a supervisor. Police Officer Austrie called for a supervisor and requested § 87(2)(b) identification which she provided (**Allegation B**). Sergeant Jeffrey Liu, Police Officer Derick Russ, and Police Officer Tariq Grant of the 75th Precinct arrived in a second police vehicle shortly after. Police Officer Kevin Morgan and Police Officer Marc Whirl of the 75th Precinct arrived in a third vehicle around the same time.

Sergeant Liu asked § 87(2)(b) to step out of the vehicle and § 87(2)(b) complied. Police Officer Austrie conducted a frisk and search of § 87(2)(b) person after he stepped out of the vehicle (**Allegations C and D**). Sergeant Liu asked § 87(2)(b) to exit the vehicle and she complied. Sergeant Liu then asked § 87(2)(b) for permission to look into her bag and she permitted him to do so. § 87(2)(b) and § 87(2)(b) were directed to stand at the back of the vehicle while, under the direction of Sgt. Liu, Police Officer Austrie conducted a search of the interior of the vehicle (**Allegation E**). Police Officer Grant told § 87(2)(b) that he drove "an old ass car" and called it a "piece of shit," (**Allegation F**). At the conclusion of the vehicle search, § 87(2)(b) was permitted to leave the incident location. § 87(2)(b) was not issued a summons.

§ 87(4-b), § 87(2)(g)

Fieldwork was conducted to the incident location on February 27, 2017, but no video footage or witnesses were identified. § 87(2)(b) provided mobile phone footage of this incident to the investigation. This video can be found in IA #s 27 and 28 (Board Review 01-02). The video shows officers asking § 87(2)(b) to exit his vehicle and shows Police Officer Austrie conducting a frisk of his person.



2017-05-08_16-05-26.mp4



2017-05-08_16-07-12.mp4

Mediation, Civil and Criminal Histories

§ 87(2)(b) rejected mediation, § 87(2)(b) The Comptroller's Office of the City of New York confirmed that a Notice of Claim has not been filed in regards to this incident. [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Civilian and Officer CCRB Histories

- Neither § 87(2)(b) nor § 87(2)(b) have prior complaints with the CCRB (Board Review 04).
- Sergeant Liu has been a member of the NYPD for ten years and has had four allegations within two complaints filed against him. § 87(2)(g)
- Police Officer Austrie has been a member of the NYPD for three years and has had one allegation within one complaint filed against him. This § 87(2)(g)
- Police Officer Grant has been a member of the NYPD for three years and has had two allegations within two complaints filed against him. § 87(2)(g)

Potential Issues

§ 87(2)(b) provided a brief telephone statement to the CCRB but failed to appear for two scheduled interviews on March 3, 2017, and April 4, 2017. Consequently, a verified statement was not obtained from § 87(2)(b)

Video was obtained from a TARU camera posted at the corner of Blake and Pennsylvania Avenues. This camera did not have the range to capture any part of this incident.

Findings and Recommendations

Allegations not pleaded

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation A – Abuse of Authority: Police Officer Mordecai Austrie stopped the vehicle in which § 87(2)(b) was an occupant.

On February 14, 2017, § 87(2)(b) submitted a written complaint to the CCRB via email. On February 21, 2017, § 87(2)(b) provided a telephone statement to the CCRB (Board Review 04). On February 27, 2017, § 87(2)(b) was interviewed at the CCRB. On February 28, 2017, § 87(2)(b) provided a telephone statement to the CCRB.

§ 87(2)(b) stated that § 87(2)(b) had asked him to drop her off at the intersection of Blake Avenue and Pennsylvania Avenue. § 87(2)(b) pulled his vehicle over on the south side of Blake Avenue near Pennsylvania Avenue. § 87(2)(b) stated that there was no legal place to park and that he was blocking a driveway and the driver's side tire of his vehicle was on the line demarcating the bicycle lane. Police Officer Austrie told § 87(2)(b) that he was "double parked in the bike lane."

Police Officer Austrie was interviewed at the CCRB on March 29, 2017. Police Officer Argila was interviewed at the CCRB on April 20, 2017. Police Officer Grant was interviewed at the CCRB on April 20, 2017. Sergeant Liu was interviewed at the CCRB on April 25, 2017. Police Officer Morgan was interviewed at the CCRB on April 25, 2017. Police Officer Whirl was interviewed at the CCRB on April 26, 2017. Police Officer Russ was interviewed at the CCRB on April 26, 2017.

All seven officers interviewed in regards to this case noted that § 87(2)(b) vehicle was parked in the bicycle lane. Police Officers Austrie and Argila who initiated the stop both stated that § 87(2)(b) vehicle was obstructing the bicycle lane and vehicular traffic. Police Officers Grant, Whirl, Morgan, and Russ who professed to not be fully aware of the reason for § 87(2)(b) extended detainment all reported observing the vehicle parked away from the curb or obstructing the bicycle lane. The Stop, Question, and Frisk Report filled out by Sergeant Liu noted that § 87(2)(b) was double parked and blocking the bicycle lane (Board Review 05).

New York City Traffic Law §4-08 prohibits vehicles from standing or stopping in a bicycle lane (Board Review 06).

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g) it is recommended that **Allegation A be exonerated.**

Allegation B – Abuse of Authority: Police Officer Mordecai Austrie stopped § 87(2)(b)

Allegation C – Abuse of Authority: Police Officer Mordecai Austrie frisked § 87(2)(b)

Allegation D – Abuse of Authority: Police Officer Mordecai Austrie searched § 87(2)(b)

§ 87(2)(b) stated that he drives a grey, BMW convertible and that he was holding a quantity of cash when Police Officers Austrie and Argila approached his window. § 87(2)(b) had a separate wad of cash in his pants pocket during this time. § 87(2)(b) stated that Police Officer Austrie requested his identification and that this was provided. Police Officer Austrie then asked § 87(2)(b) to turn off his vehicle engine and exit his vehicle which § 87(2)(b) refused to do. § 87(2)(b) requested a supervisor and Police Officer Austrie called for one to respond the location. While waiting for a supervisor to arrive, Police Officer Austrie requested identification for § 87(2)(b). § 87(2)(b) handed § 87(2)(b) two forms of identification for the officer and § 87(2)(b) handed one of these cards to Police Officer Austrie. § 87(2)(b) was upset during this time and was arguing with Police Officer Austrie.

Sergeant Liu arrived and asked § 87(2)(b) to step out of the vehicle and § 87(2)(b) complied. After stepping out of the vehicle, Police Officer Austrie patted down the exterior of § 87(2)(b) pants pockets and ran his finger along the inside of his right pants pocket. Nothing was recovered from § 87(2)(b) pockets and he was instructed to stand at the back of the vehicle.

Sergeant Liu stated that upon arriving at the location, he spoke with Police Officer Argila who informed him that he had recognized § 87(2)(b) and the vehicle he was driving as being the subject of an intelligence briefing that he had attended. Police Officer Argila informed Sergeant Liu that the briefing revealed that § 87(2)(b) had a history of involvement with firearms and narcotics. Police Officer Argila further informed Sergeant Liu that he had observed § 87(2)(b) reaching under his seat as officers approached. When Sergeant Liu approached the vehicle, he observed “a substantial amount” of loose dollar bills on § 87(2)(b) lap.

Sergeant Liu stated that § 87(2)(b) exited the vehicle after being asked to do so and Police Officer Austrie frisked and searched § 87(2)(b). Police Officer Austrie felt a bulge in § 87(2)(b) pants pockets and determined that this was a second wad of cash by removing it from § 87(2)(b) pocket. After this frisk and search were concluded, § 87(2)(b) was instructed to stand at the back of the vehicle.

Police Officer Austrie stated that he was not familiar with § 87(2)(b) and did not recognize his vehicle at the time of the incident. Police Officer Austrie observed § 87(2)(b) lean down and move his arms beneath his seat as he approached. While at the window, Police Officer Austrie could not see what objects, if any, § 87(2)(b) had been holding or adjusting. Police Officer Austrie cited these actions as giving him reason to fear for his safety. § 87(2)(b) refused to provide his identification when asked and withheld § 87(2)(b) identification from Police Officer Austrie as well. Police Officer Austrie called Sergeant Liu to the location and § 87(2)(b) exited the vehicle after being asked to do so by the sergeant. Police Officer Austrie conducted a frisk and search of § 87(2)(b) on his own volition.

Police Officer Austrie frisked § 87(2)(b) around his waistband and felt a hard object in § 87(2)(b) right pants pocket. The object was hard, rectangular, and two to three inches in length. Police Officer Austrie believed this could have been a glassine containing a controlled substance or a pocketknife. Police Officer Austrie removed the object, determined it was a ring of keys, and replaced the keys in § 87(2)(b) pocket. Police Officer Austrie felt what he identified as a wad of cash in § 87(2)(b) left pants pocket and did not remove it. Police Officer Austrie then instructed § 87(2)(b) to stand at the back of the vehicle.

Police Officer Argila stated that he recognized § 87(2)(b) BMW from an intelligence briefing that he had attended one week before. Police Officer Argila further confirmed that § 87(2)(b) had been the subject of that briefing after approaching the vehicle and seeing his face. Police Officer Argila believed that § 87(2)(b) had been involved in a shooting and drug sales but could not recall if he communicated this to Police Officer Austrie at the time of the incident. Police Officer Argila observed § 87(2)(b) drop a stack of loose dollar bills onto the floor of the car in front of his feet and then reach his arms down and feel around underneath his seat. Police Officer Argila felt concern for his safety at this time because he could not see what § 87(2)(b) was reaching for and it did not appear to be his money.

Police Officer Argila confirmed that he shared his suspicions about § 87(2)(b) and his observations regarding § 87(2)(b) conduct with Sergeant Liu upon his arrival. Police Officer Argila observed as Police Officer Austrie frisked § 87(2)(b) but did not know if he was searched or if any objects were removed from his pockets during this time. Police Officer Argila specified that he believed § 87(2)(b) to have been involved in a shooting in September of 2016. Police Officer Argila provided a Complaint Report for that incident noting that a male had been shot by a civilian inside of a black, four-door BMW with partial New York State license § 87(2)(b) (Board Review 07).

Police Officer Grant stated that an officer frisked § 87(2)(b) when he exited the vehicle but did not know who this was or whether this interaction included a search of § 87(2)(b) person. Police Officer Russ did not know whether § 87(2)(b) was frisked or searched after he exited the vehicle. Police Officer Whirl was not paying attention to the incident and did not know if § 87(2)(b) was frisked or searched after being removed from the vehicle. Police Officer Morgan stated that an officer frisked § 87(2)(b) but did not know which officer performed this action. Police Officer Morgan did not know why § 87(2)(b) was being frisked.

Sergeant Liu prepared a Stop, Question, and Frisk report for § 87(2)(b) based on the information that was provided to him by Police Officer Argila. The Stop, Question, and Frisk report noted that the officers who initiated the stop of § 87(2)(b) had “prior intel about the driver” and noted § 87(2)(b) furtive motions and “combative” demeanor as circumstances leading to his frisk and search (Board Review 05).

Video 2017-05-08_16-05-26, located in IA #27, indicates that § 87(2)(b) was holding a set of keys when he exited the vehicle and that he placed these keys on the roof. It is clear that there are objects in § 87(2)(b) pockets but the objects appear to be flat and do not create a significant bulge. Police Officer Austrie runs his finger through § 87(2)(b) right pants pocket and § 87(2)(b) becomes upset and moves his hand away. § 87(2)(b) who is filming the interaction, is asked to exit the vehicle before the search is concluded (Board Review 01).

A search of the New York State DMV database indicated that § 87(2)(b) is the owner of a black four-door BMW sedan with license plate number § 87(2)(b) (Board Review 08).

An officer may order the driver and all passengers out of a vehicle during a lawful traffic stop and until the stop is concluded if an officer has a legitimate concern for their safety. People v. Forbes, 283 A.D.2d 92 (2001) (Board Review 09). The totality of information - even though it may be innocuous when isolated - obtained by an officer during a vehicle stop in which the passenger was observed making furtive movements and when it leads to an actual and specific danger to the officer’s safety, a frisk would be justified. People v. Feldman, 114 A.D.3d 603 (2014) (Board Review 10).

An officer is allowed “minimal intrusion” onto an individual’s person if they reasonably suspect that an individual is armed, and consequently fear for their safety. People v. De Bour, 40 N.Y.2d 201(1976) (Board Review 11). Once the limited intrusion of a protective frisk fails to reveal a weapon and the basis for the officer’s fear for his safety has abated, the officer may not search the

individual. Additionally, an officer may only search an individual if a frisk reveals an object that feels like a weapon. People v. Rodriguez, 856 N.Y.S. 2d 502 (2008) (Board Review 12).

§ 87(2)(g)

§ 87(2)(g)

it
is recommended that **Allegations B and C be exonerated.**

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that
Allegation D be substantiated.

Allegation E – Abuse of Authority: Sergeant Jeffrey Liu authorized the search of the vehicle in which § 87(2)(b) was an occupant.

§ 87(2)(b) was instructed to stand at the rear of his vehicle with his back against the trunk. § 87(2)(b) could not see officers searching his car during this time because he was told to look forward but stated that he could hear the sound of officers moving objects around the vehicle and could hear the noise of his glove compartment being opened and closed. § 87(2)(b) believed that

Police Officer Austrie was conducting the search because Police Officer Austrie was not visible on the video that he provided to the CCRB. § 87(2)(b) confirmed that the vehicle was searched during this time but could not provide any additional information.

All officers interviewed in regards to this case confirmed that a search of § 87(2)(b) vehicle was conducted. Sergeant Liu stated that he directed Police Officer Austrie to conduct a search of the vehicle for weapons. Police Officer Austrie confirmed searching the front and rear of the vehicle but denied opening any compartments. Police Officer Austrie also observed § 87(2)(b) lean down as he approached the vehicle but never saw any objects or weapons in the vehicle. Police Officer Austrie located a bundled wad of cash near the accelerator pedal but did not find any other noteworthy object inside of the vehicle.

An officer may not search the area where an individual might gain possession of a weapon if the individual in question is in no position to obtain objects in that area of the car at the time of the search. People v. Derrell, 26 misc. 3d 697 (2009) (Board Review 13). Absent probable cause, it is unlawful for a police officer to invade the interior of a stopped vehicle once the suspects have been removed and patted down without incident, as any immediate threat to the officers' safety has consequently been eliminated. People v. Mundo, 99 N.Y.2d 5 (1999) (Board Review 14).

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED] It is therefore recommended that **Allegation E** be substantiated.

Allegation F – Discourtesy: Police Officer Teriq Grant spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that Police Officer Grant told him that he drove "an old ass car" and called his vehicle a "piece of shit," before departing the location. § 87(2)(b) noted that these comments were made in a jocular manner but that he did not feel that they were appropriate. § 87(2)(b) stated that she heard Police Officer Grant tell § 87(2)(b) that his vehicle was "cheap" and said, "This is a bullshit car. A Honda Accord is better than this shit." § 87(2)(b) also recalled hearing Police Officer Grant call § 87(2)(b) an "asshole."

Police Officer Grant denied making these comments, denied using profanity, and denied making any disparaging comments to § 87(2)(b) about his vehicle. All officers interviewed for this case denied hearing Police Officer Grant make the above comments. This was not captured on video.

§ 87(2)(g)

It is therefore recommended that **Allegation F** be unsubstantiated.

§ 87(4-b), § 87(2)(g)

[REDACTED]

Squad: 6

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date